

Chapter 777

STREETS AND SIDEWALKS

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[HISTORY: Adopted by the County Council of Allegheny County as indicated in article histories. Amendments noted where applicable.]

CHARTER REFERENCES

For additional information regarding the powers of the Legislative Branch of County government, see Art. IV.

ADMINISTRATIVE CODE REFERENCES

For additional information regarding the County's authority regarding County property, see Part 7.

ARTICLE I

Occupancy Permits, Easements and Acquisition of Real Property**[Adopted 2-17-2004 by Ord. No. 04-04; amended in its entirety 12-3-2013 by Ord. No. 25-13]****§ 777-1. Findings.**

- A. Article IV, § 1.4-402(k), of the Allegheny County Home Rule Charter (the " Home Rule Charter") vests County Council with the power and duty by ordinance to permit the use of County land, buildings or other real or personal property owned by the County.
- B. Since adoption of the Home Rule Charter, County Council has processed numerous ordinances requested by the Department of Public Works to convey various licenses, rights-of-way, utility easements, and easements for the use of County real property.
- C. Since adoption of the Home Rule Charter, County Council has also processed numerous ordinances approving the amicable acquisition of real estate for County public work projects, including, but not limited to, County roads and bridges.
- D. The County Council desires to reduce the time needed for routine approvals of matter affecting County real estate that are inefficient, result in project schedule delays, inconvenience to the public and higher costs of administration.
- E. The County Council finds that approving a single ordinance with respect to matters identified herein will reduce overall delays and costs for administration and will result in increased efficiencies with respect to the operation of County government.

§ 777-2. Authorization to grant highway occupancy permits for use of County roads and bridges.

No person, public utility, private company, municipality or municipal authority shall occupy or perform any work upon or under a County highway or bridge without first securing a highway occupancy or bridge occupancy permit. County Council does hereby authorize the Department of Public Works to grant such highway and bridge occupancy permits so long as such actions shall promote public safety and welfare and shall not interfere with any existing or anticipated County governmental function. All such grants shall be consistent with sound engineering practices and the regulations of the Department of Public Works in effect on the date hereof or that may be hereafter adopted. County Council does further authorize the Director of the Department of Public Works, or his designee, to take any and all further actions as may be necessary or proper to carry out the authorization granted herein, including, but not limited to, the execution of the permits identified in this section. Notwithstanding the foregoing, County Council shall have the right to rescind or revoke any action taken under the authority granted herein.

§ 777-3. Authorization to grant easements, rights of entry and licenses for use of County real estate.

County Council does hereby authorize the Department of Public Works to grant easements, rights of entry and licenses for the use of County-owned real estate so long as such actions shall promote public safety and welfare and shall not interfere with any existing or anticipated County governmental function. The authorization granted herein shall include, but not be limited to, execution of license agreements, rights of entry, authorizations to enter County-owned property, cooperation agreements with municipalities and third parties, utility easements, right-of-way agreements, reimbursement agreements and other instruments that may affect County-owned real estate. Notwithstanding the above, all such actions shall be subject to approval of the County Solicitor. County Council does further authorize the Director of the Department of Public Works, or his designee, to take any and all further actions as may be necessary or proper to carry

out the authorization granted herein, including, but not limited to, execution of any writings or instruments identified in this section. Notwithstanding the foregoing, County Council shall have the right to rescind or revoke any action taken under the authority granted herein.

§ 777-4. Authorization to amicably acquire real estate for public works projects.

County Council does hereby authorize the Department of Public Works to acquire, by amicable and administrative settlements, real estate for public works projects within the operating and capital budgets approved by County Council. Such public works projects shall include, but are not limited to, construction, reconstruction, replacement, relocation, installation, repair and expansion of County roads, bridges, parks and buildings. With respect to the authority provided herein, the Department may acquire any interest in land it deems appropriate, including easements, rights-of-way, licenses or title in fee simple absolute. The Department of Public Works shall be further authorized to obtain appraisals and title reports, to negotiate and acquire any required property, rights-of-way and easements, and to prepare any necessary agreements of sale and deeds or other instruments and notices evidencing such acquisitions of real estate. Notwithstanding the above, all such actions shall be subject to approval of the County Manager and County Solicitor. County Council does further authorize the Director of the Department of Public Works, or his designee, to take any and all further actions as may be necessary or proper to carry out the authorization granted herein, including, but not limited to, execution of any writings or instruments identified in this section. Notwithstanding the foregoing, County Council shall have the right to rescind or revoke any action taken under the authority granted herein.

§ 777-5. Authority to approve takings by way of eminent domain retained.

Nothing contained in this article shall be deemed to authorize the Department of Public Works to acquire property through the right of eminent domain and by way of the filing of a declaration of taking without first seeking approval and authorization of County Council.

§ 777-6. Term of authorizations.

This article shall expire on December 31, 2015.